

In the
Court of Appeals
Sixth Appellate District of Texas at Texarkana

No. 06-26-00086-CV

IN THE ESTATE OF MAMIE JO JENKINS

On Appeal from the County Court at Law No. 1
Hunt County, Texas
Trial Court No. 19817

Before Stevens, C.J., van Cleef and Rambin, JJ.
Memorandum Opinion by Justice van Cleef

MEMORANDUM OPINION

Appellant, William Dan Moss, attempts to appeal from the trial court's order denying his petition for bill of review, which he purports was signed on July 23, 2026. However, the clerk's record does not contain any such signed, written order. For the following reasons, we dismiss this appeal for want of jurisdiction.

Our jurisdiction is constitutional and statutory in nature. *See* TEX. CONST. art. V, § 6; TEX. GOV'T CODE ANN. § 22.220 (Supp.). Unless we are given specific authority over an interlocutory appeal from a particular type of order, we have jurisdiction only over appeals from final judgments. *See Lehmann v. Har-Con Corp.*, 39 S.W.3d 191, 195–96 (Tex. 2001), *superseded by statute*, *Indus. Specialists, LLC v. Blanchard Refin. Co.*, 652 S.W.3d 11, 14 (Tex. 2022). To be appealable, a judgment or order must be written and signed by the trial court. *See* TEX. R. APP. P. 26.1; *Farmer v. Ben E. Keith Co.*, 907 S.W.2d 495, 496 (Tex. 1995) (per curiam).

By letter dated October 2, 2026, we informed Appellant that the order he desired to appeal was not in the clerk's record and afforded him the opportunity to demonstrate proper grounds for our retention of the appeal. We warned Appellant that if we did not receive an adequate response by October 12, 2026, we would dismiss his appeal. Appellant did not file a response to our letter.[1]

[1]On October 20, 2026, Appellant filed a "Motion [f]or Extension of Time." Because we dismiss this appeal, we deny Appellant's motion as moot.

Accordingly, we dismiss this appeal for want of jurisdiction.

Charles van Cleef
Justice

Date Submitted: October 28, 2026
Date Decided: October 29, 2026